

the slander is not in the wicked means of getting them, but in the odiousness of the infection, as a leper, 2 Cro. 144. 1 Roll. 44.

[220] 292. CLASEBROOKE *versus* LIVESEY.

Pasc. 16 Jac. Rot. 2313.

Battery.

Confession of action refused after issue joined. 1 Brnl. 196. Noy, 31.
Br. Confession, 4.

Clasebrooke an attorney brought an action of battery, &c. against Livesey, in the county of Wigorn: the defendant pleaded not guilty, which was entred. And now the defendant would confess the action, which the plaintiff was not willing to accept, because the defendant had some power with the sheriff, before whom the inquiry of damage should be. Whereupon though all the prothonotaries said, that they had never seen a confession refused, if it were offered before the Nisi Prius sealed, yet the Court did in their discretion refuse it; as well as because the wounding was grievous, as to avoid error.

293. WRENHAM'S CASE.

Star-Chamber.

Star-Chamber for slanderous petition, against the L. Chancellor.—It is lawful to complain to the King of injustice.

Yelverton Attorney-General informed in the Star-Chamber, ore tenus, against John Wrenham, for a complaint by him exhibited against Sir Francis Bacon, Lord Chancellor to the King, in a book containing a scandalous censure of a decree made by the said Lord Chancellor against him, for one Sir Edward Fisher. In the sentencing of which case it was resolved by the whole Court, that it was lawful for any subject to petition to the King for redress in an humble and modest manner, where he finds himself grieved by a sentence or judgment; for access to the sovereign must not be shut up in case of the subjects distresses; but on the other side, it is not permitted under colour of a petition and refuge to the King, to rail upon the Judge or his sentence, and to make himself Judge in his own cause, by prejudging it before the re-hearing (for which his suit to the King should be) which Wrenham in this case did through his whole book, with the most desperate boldness and despicable and virulent words that was possible. It was also resolved, that the justice of the decree was not to be questioned in this case, for that was not the point now examinable, though in that it did appear, that he had done my Lord Chancellor much and great wrong. So he was censured a thousand pounds fine.

294. ANNE NEEDLER *versus* BISHOP OF WINCHESTER.

Hill. 12 Jac. Rot. 1844.

Quare impd.

Waller. Surrey. 1 Brnl. 162. 348. 35 H. 8. cap. 21.—The stat. 31 H. 8. of Monasteries, the clause of confirmation of grants to, and from the King, there expounded at large.

“Anne Needler brought a quare impd. against the Bishop of Winchester, and George Needham, clerk of the Vicarage of Horley in the county of Surrey, and declared, that one Robert Bristow was seised of the Parsonage of Horley, whereupon the advowson of the vicarage belongeth, and that the vicarage avoided by the death of one Lucas; and that it was then in the hands of Queen Elizabeth, by the wardship of Robert Bristow, the son of the first Bristow, who presented William Browne, and